

25NWCV03413 25NWCV03413

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Case Number: 25NWCV03413 Hearing Date: July 17, 2026 Dept: P

SINTHIA G. PEREZ GARCIA v. JEFFREY CERVANTES, ET AL.

CASE NO.: 25NWCV03413

HEARING: 07/17/2026 @ 9:30 AM

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TENTATIVE ORDER

I.

Plaintiffs' motion for leave to file a second amended complaint is GRANTED.

II.

Plaintiffs are ORDERED to file and serve the proposed second amended complaint within 5 days of this Order.

Moving party to give notice.

Plaintiffs Sinthia G. Perez Garcia, Erlita R. Melchor Carrillo and Milagro Minaya Vasquez (Plaintiffs) move for leave to file a second amended complaint (SAC).

Background

On September 25, 2025, Plaintiffs filed this personal injury action against Defendant Jeffrey Cervantes and Does 1 through 20. On October 7,

2025, Plaintiff filed the operative first amended complaint (FAC) against Defendant Jeffrey Cervantes, City of Huntington Park (City), and Does 1 through 20. This action arises out of a motor vehicle collision on March 16, 2024, when a vehicle driven by Cervantes, while in the scope of his employment with City, collided into Plaintiffs' vehicle in the intersection of Gage Avenue and Regent Street. (FAC, ¶¶ 6-7, 26.) The FAC asserts three causes of action: (1) motor vehicle negligence, (2) negligence per se, and (3) Government Code sections 811.2 and 815.2.

Legal Standard

"The court may...in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473 subd. (a).)

California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

California Rules of Court rule 3.1324(b) requires a separate declaration accompany the motion. The separate declaration must include: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

"If the motion to amend is timely made and the granting of

the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court of California (1959) 172 Cal.App.2d 527, 530.)

Discussion

Plaintiffs move for leave to file a SAC. This motion is unopposed.

In compliance with California Rules of Court, rule 3.1324(a), Plaintiffs submit Plaintiffs' counsel's declaration. Plaintiff submits a copy of the proposed SAC showing that Plaintiffs seek to remove the first cause of action for motor vehicle negligence and amend the third cause of action to allege liability under Government Code section 815.2 only. (Echavarria Decl., ¶ 2, Exh. A.)

In compliance with California Rules of Court, rule 3.1324(b), Plaintiffs' counsel states Plaintiffs seek to amend the FAC to clarify allegations and incorporate facts discovered during discovery. (Echavarria Decl., ¶ 6.) Plaintiffs' counsel explains that they make these amendments after meeting and conferring with defense counsel. (Echavarria Decl., ¶¶ 3-5.) Plaintiffs' counsel puts forth meet and confer correspondence suggesting Defendant intended to stipulate to permitting Plaintiffs to file the SAC. (Echavarria Decl., ¶¶ 3-5.) Together with Defendants' Notice of Non-Opposition, the Court finds that Defendants are agreeable to granting leave to file the proposed SAC and will not be prejudiced by its filing. The Court therefore finds that leave to file the proposed SAC is warranted.

Accordingly, Plaintiffs' motion for leave to file a second amended complaint is GRANTED. Plaintiffs are ORDERED to file and serve the proposed second amended complaint within 5 days of this Order.